

25VECV02350 25VECV02350

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-27

Motion: DEFENDANT THE REGENT OF THE UNIVERSITY OF CALIFORNIA'S MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, FOR SUMMARY ADJUDICATION OF ISSUES

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Case Number: 25VECV02350 Hearing Date: August 27, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

KENNETH FARLEY,

Plaintiffs,

vs.

CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, UCLA dba UCLA
WEST VALLEY MEDICAL CENTER, REGENTS OF THE UNIVERSITY OF CALIFORNIA,

Defendants.

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CASE NO: 25VECV02350

[TENTATIVE] ORDER RE: DEFENDANT THE
REGENT OF THE UNIVERSITY OF CALIFORNIA'S MOTION FOR SUMMARY JUDGMENT, OR IN
THE ALTERNATIVE, FOR SUMMARY ADJUDICATION OF ISSUES

Dept. U

8:30 a.m.

August, 27, 2026

A. BACKGROUND

On November 26, 2025, Plaintiff Kenneth Farley ("Farley") filed a First Amended Complaint against Defendant UCLA dba UCLA West Valley Medical Center and Does 1-25 for General Negligence, Premises Liability, and Statutory Negligence. On December 23, 2025, Farley filed an "Amendment to Complaint," wherein Regents of the University of California was named in lieu of Doe 1. Defendant The Regents of The University of California (erroneously sued and served as "UCLA dba UCLA West Valley Medical Center" and "Regents of the

University of California") ("Defendant") moves for summary judgment in its favor or, in the alternative, summary adjudication, on the following basis:

B. Defendant,
a public entity, is not subject to common law theories of liability;

C. Defendant
did not owe Farley a duty because Farley cannot identify the location of the incident or prove that the location of the alleged incident was owned by Defendant;

D. Defendant's
property was not in a dangerous condition at the time of the injury;

E. Farley's
alleged injuries were not proximately caused by the alleged dangerous condition;

F. Farley
cannot prove a reasonably foreseeable risk because there was no dangerous condition or a dangerous condition that proximately caused the alleged fall;
and

G. Defendant's
employee did not negligently or wrongfully create the dangerous condition, and Defendant did not have actual or constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Farley alleges the following
facts: On or about April 4, 2024, Farley sustained serious injuries at the premises located at 7300 Medical Center Drive in,
West Hills, California. Farley tripped and fell when he encountered a dangerous or hazardous condition on the ground in the parking lot. Farley believes that the dangerous condition consisted of a mixture of rainwater and an unknown sticky, oily, and slippery substance. This condition caused Farley to fall and sustain injuries and damages. (Complaint.,
p.4)

RULING

Defendant's motion for summary judgment is GRANTED.

H. LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

"[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) A moving defendant need not conclusively negate an element of plaintiff's cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.)

To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff does not possess needed evidence” but also that “the plaintiff cannot reasonably obtain needed evidence.” (Aguilar, supra, 25 Cal.4th at p. 854.) It is insufficient for the defendant to merely point out the absence of evidence. (Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891.) The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (Ibid.)² The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (Aguilar, supra, 25 Cal.4th at p. 855.)

“Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

C. EVIDENTIARY OBJECTIONS

Plaintiff's evidentiary objections fail to comply with California Rules of Court, rule 3.1354, as the objections 1) fail to state the specific legal authority supporting the grounds for objection, and 2) are stated and argued in the separate statement. Based both on these procedural violations, as well as the substance of the objections, the Court overrules the objections.

D. REUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of (1) Certified Record of Climatological Observation from the

National Environmental Satellite, Data, and Information Services, for the Woodland Hills Pierce College station, dated April 1-30, 2024. (Exhibit D.); (2) The distance between UCLA West Valley Medical Center to Pierce College is 3.11 miles. (Exhibit E.); and (3) There was no record of rain from April 1- 4, 2024 at the Woodland Hills Pierce College station. (Exhibit E.) Defendant's requests are GRANTED pursuant to Evidence Code section 452, subdivision (c); and 452, subdivision (h).

I. DISCUSSION

Plaintiff's Late Opposition

Plaintiff served his opposition late. Plaintiff served his opposition on August 12—five days past the statute's 20-day deadline. As a result, Defendant asks the Court to strike Plaintiff's opposition in its entirety. The Court exercises its discretion and considers Plaintiff's opposition.

Statutory

Claims

Defendant contends

that the Court should grant summary judgment because Plaintiff's operative complaint does not identify any statutory basis for his General Negligence or Premises Liability claims. (Motion, p. 7.) Plaintiff's original complaint, however, stated that his causes of action arose under Government Code sections 830 and 835, et seq., for negligence and dangerous condition of public property. Plaintiff did not include this language in his First Amended Complaint.

While the Court

could do so, granting summary judgment on the technical omission identified by Defendant would be a drastic remedy. As the court explained in *Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663, when summary judgment is sought on the ground that a complaint is legally insufficient, but the materials submitted in opposition show the plaintiff could state a viable cause of action, the trial court can allow the plaintiff an opportunity to amend before entering judgment. The Court will skip the step of amendment, decline to grant summary judgment based solely on the omission of statutory citations in the First Amended Complaint,

and consider the motion as if Plaintiff had stated the allegations under Government Code sections 8239 and 835, et seq., which he did in the initial complaint.

Dangerous
Condition

Government Code

section 815 provides that “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person” except as provided by statute. (Gov. Code, § 815, subd. (a); see *Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932.) “[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles.” (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) Here, the applicable statutory provisions are Government Code sections 835 and 835.2.

Section 835

provides: “Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Government Code § 835.)

Section 835.2 provides in pertinent part: “(a) A public entity had actual notice of a dangerous condition within the meaning of subdivision (b) of Section 835 if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character. [¶] (b) A public entity had constructive notice of a dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes

that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character....” (§ 835.2.)

Defendant seeks

summary judgment or alternatively, summary adjudication, on five issues: (1) Defendant’s property was not in a dangerous condition at the time of injury; (2) Plaintiff’s alleged injuries were not proximately caused by the alleged dangerous condition; (3) Plaintiff cannot prove a reasonably foreseeable risk; (4) Defendant employee did not negligently or wrongfully create the dangerous condition and Defendant did not have actual or constructive notice of dangerous condition.

The term

“dangerous condition” means a “condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830, subd. (a).) “A condition is not dangerous within the meaning of the statute ‘unless it creates a hazard to those who foreseeably will use the property . . . with due care.’ Thus, even though it is foreseeable that persons may use public property without due care, a public entity may not be held liable for failing to take precautions to protect such persons.” (Matthews v. City of Cerritos (1992) 2 Cal.App.4th 1380, 1384.) “The condition of the property involved should create a ‘substantial risk’ of injury, for an undue burden would be placed upon public entities if they were responsible for the repair of all conditions creating any possibility of injury however remote that possibility might be.” (Fredette v. City of Long Beach (1986) 187 Cal.App.3d 122, 130, fn. 5.) “The existence of a dangerous condition ordinarily is a question of fact, but the issue may be resolved as a matter of law if reasonable minds can come to only one conclusion.” (Peterson v. San Francisco Comm. College Dist. (1984) 36 Cal.3d 799, 810.)

1. Defendant’s
burden

Defendant has met

its initial burden of demonstrating that Plaintiff cannot establish the existence of a dangerous condition. Defendant relies on the following evidence to meet that initial burden:

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Plaintiff testified that he does not know whether he slipped or tripped, does not recall the weather, and cannot identify any substance or defect on the ground. (UMF Nos. 12-13.)

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Medical records show that Plaintiff fell due to syncope.

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No rain occurred at the alleged location of the fall on the date of the alleged fall, which is inconsistent with a fall due to a substance containing rain water.

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No remnants of a “mixture of rainwater and an unknown sticky, oily, and slippery substance” were found at the location after the fall.

.

Defendant did not own the entire parking lot where Defendant allegedly fell. (UMF No. 14)

This evidence is sufficient to shift the burden to Plaintiff. The burden therefore shifts to Plaintiff to present evidence from which a reasonable trier of fact could find that a dangerous condition existed. Plaintiff fails to meet this burden.

Plaintiff presents no evidence that rain, an oily or sticky substance, or any other dangerous condition existed when he fell. Without evidence of such a condition, Plaintiff cannot establish that Defendant breached a duty by creating, permitting, failing to remedy, or failing to warn of it. Plaintiff also cannot establish causation because he does not know how or why he fell. Plaintiff identifies no negligent act or omission independent of the alleged dangerous condition.

Furthermore, Plaintiff cannot establish where the incident occurred. No video exists of the incident nor an eyewitness. And Plaintiff himself repeatedly

stated at his deposition, "I don't know where I fell." (Ex. B, 36:1, 37:19.) Without that information, he cannot establish that Defendant is in any way responsible for the incident.

Accordingly,

Plaintiff has not raised a triable issue of material fact as to breach or causation, and Defendant is entitled to summary adjudication of the negligence cause of action.

J. CONCLUSION

Defendant's motion for summary judgment is GRANTED.

DATED: 8/27/2026

Lee S. Arian

Judge of the
Superior Court